

16. 9:00 AM CASE NUMBER: C25-02104
CASE NAME: JENNIE LYNN VALDEZ SALDITOS VS. BENJAMIN D. WEBMAN
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT**
FILED BY: WEBMAN, BENJAMIN D.
TENTATIVE RULING:

Plaintiff Jennie Lynn Valdez Salditos filed this action against Defendant Benjamin D. Webman seeking a partition of real property. Service of summons and complaint were effected on August 2, 2025. After Defendant failed to file a timely answer, Plaintiff sought and received a default judgment on September 10, 2025. On November 13, 2025, Defendant moved to set aside the default judgment on grounds of excusable neglect. The Court received no timely opposition. The Proof of Service of the Motion was not signed. The Court requires Defendant to file a signed proof of service to confirm that Plaintiff was apprised of this Motion.

Defendant Webman states that he has been distracted by an “ongoing custody battle with his former significant other” as well as duties arising out of his role as caregiver for his father. He also notes that he does not object to a sale of the subject property, but desires to play a role in the process.⁵ Given the relative timeliness of Defendant’s request, the young age of the case, and the lack of opposition from Plaintiff, the Court will contingently **grant** the request upon filing of a *signed* Proof of Service.

17. 9:00 AM CASE NUMBER: C25-02647
CASE NAME: GINO CARUSO VS. ELVECIO PINHEIRO MACHADO FILHO
HEARING IN RE: FOR EXPEDITED ORDER RELEASING DEED OF TRUST & ASSIGNMENT OF RENTS
FILED BY:
TENTATIVE RULING:

Plaintiff Gino Caruso has filed a complaint against Defendant Elvecio Pinheiro Machado Filho (Filho) for torts arising out of the purchase of a property in 2015. Before the Court at present is a Motion for Expedited Order Releasing Deed of Trust and Assignment of Rents. The Court has received no timely opposition. It should be noted, however, that part of Plaintiff’s filing is premised on the failure of Defendant to respond to the Complaint, and the declaration in support of the motion contains the words “Court’s Judgment Against Defendant.” The Court sees in its file a General Denial filed on November 12, 2025, two days prior to the filing of this Motion. The Court will assume that Plaintiff simply was unaware of that filing at the time of submission of this Motion.

Civil Code §2941(b)(1) provides: “Within 30 calendar days after the obligation secured by any deed of trust has been satisfied, the beneficiary or the assignee of the beneficiary shall execute and deliver to the trustee the original note, deed of trust, request for a full reconveyance, and other documents as may be necessary to reconvey, or cause to be reconveyed, the deed of trust.” After review of the

⁵ Defendant’s papers erroneously state that this action was filed December 23, 2024 and the default was entered April 9, 2025. These dates must have been from a different case, as this case was filed July 23, 2025, with default entered September 10, 2025. The Court will look past this error, as it does not affect the decision on this Motion.

papers submitted by Plaintiff Caruso, it appears that the obligation secured has been satisfied, and therefore Defendant Filho must release the deed of trust and assignment of rents.

Plaintiff's Motion is **Granted**. The Court will not take any further action relating to *judgment* at this time, as that is not properly before the Court.

18. 9:00 AM CASE NUMBER: C25-02669

CASE NAME: CORINNE REES VS. SAMIR ROHAYEM

***HEARING ON MOTION FOR DISCOVERY COMPEL PRODUCTION OF DOCUMENTS**

FILED BY: ROHAYEM, SAMIR

TENTATIVE RULING:

Defendants Samir Rohayem, Michel Rehayem, and ZMoonos, LLC have filed a Motion to Compel Production of Documents and Request for Sanctions. Plaintiff Corinne Rees opposes the motion and notes that documents have been produced. Although the instant motion is, in many ways, relatively simple, it sits in the context of a case that is far more complicated below the surface. That complexity is relevant at the very least to the dueling requests for sanctions and so the Court will address those issues to the best of its ability.

The instant case was filed on September 17, 2025. On October 23, 2025, Defendants moved for Mandatory Trial Setting Preference Pursuant to California Code of Civil Procedure 36. Plaintiff did not object. That Motion, itself subject to a request to expedite, was heard and granted January 27, 2026.⁶ At that time, the Court gave a trial date of April 6, 2026.

On November 21 and 24, 2025, Defendants served discovery on Plaintiff, including a Request for Production of Documents. Plaintiff requested, and Defendants granted an extension for responses to January 13, 2026. On that date, counsel for Defendants sent a letter to counsel for Plaintiff noting non-receipt of responses. At some point that same day, Plaintiff did indeed serve responses with objections but also indications that "Responding party will comply with this request." Additional similar responses on an additional set of requests were served January 21, 2026. The Court has no record of any communication between the parties—in either direction—between January 13, 2026 and February 3, 2026 aside from that letter and the discovery responses mentioned immediately above.

It is notable that in the middle of this time, the earlier-filed motion relating to trial preference was granted and a trial date was set. It does not appear to the Court that Defendants raised this ongoing discovery dispute to the Court to factor into trial setting.⁷ It is the urgency of the trial date—and its corresponding imminent discovery deadline—that Defendants note in their Reply briefing as being at least partially responsible for their need to proceed to Motion quickly.

On February 3, 2026, Defendants filed the instant motion. By declaration, they averred—and

⁶ The order was entered March 5, 2026.

⁷ This Court has now taken over the docket of the prior judicial officer who handled that Motion and no notes, minute orders, or transcripts reflect a discussion of pending discovery disputes.